

Court No. - 39

Case :- WRIT - C No. - 1494 of 2019

Petitioner :- Raj Kumari @ Rajesh Kumari

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Rajeev Kumar Sharma

Counsel for Respondent :- C.S.C., Krishna Agarawal

Hon'ble B. Amit Sthalekar, J.

Hon'ble Mrs. Manju Rani Chauhan, J.

Heard Sri Rajeev Kumar Sharma, learned counsel for the petitioner, Sri Krishna Agarawal, learned counsel for the respondent nos.2&3 and the learned Standing Counsel for the respondent no. 1.

The petitioner in the writ petition is seeking quashing of the demand notice dated 04.01.2019 whereby a sum of Rs. 1,42,998/- is sought to be recovered from the petitioner towards electricity dues.

It is stated that on the request of the petitioner, a new meter was installed and her old meter was found to be corrected and thereafter regular bills were being issued to the petitioner, which have not been paid by her. Learned counsel for the petitioner disputes the bills.

If the petitioner has any grievance in respect of the bills, she has a remedy under Clause 6.5 of the Electricity Supply Code 2005 before the respondent no.2- Executive Engineer, Dakshinanchal Vidhut Vitran Nigam Ltd. Hamirpur by way of filing her objection.

We therefore dispose of this writ petition with a direction that if the petitioner appears before the respondent no.2-Executive Engineer, Dakshinanchal Vidhut Vitran Nigam Ltd. Hamirpur, on 31.01.2019 at 11:00 A.M. alongwith the certified copy of this order and her objection/representation, the respondent no.2 shall hear the petitioner and consider and decide the petitioner's objection / representation in accordance with law within a further period of 15 days.

Subject to the complying with the direction given hereinabove by the petitioner, the recovery in pursuance of the impugned demand notice dated 04.01.2019 shall remain in abeyance and shall be subject to any final order which may be passed by the respondent no.2.

Order Date :- 17.1.2019

JK Yadav